

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
June 15, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2019-01114752 Scoggins vs. Taber Company, Inc.	Off Calendar

2	30-2021-01220181 Chingofor vs. Attentive Home Care, Inc.	The tentative ruling is to continue the Final Report Hearing to September 28, 2026 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. The court also issues an Order to Show Cause why the court should not impose monetary sanctions against plaintiff's counsel for failing to comply with the court's order of December 8, 2025, to file all supporting papers for the Final Report Hearing at least 16 days before the Final Report Hearing date. The hearing is set for September 28, 2026 at 1:30 p.m. Any response to the OSC must be filed at least a week before the hearing. Plaintiff is ordered to give notice of this ruling.
3	30-2023-01330869 Balles vs. Graphic Packaging International, LLC	The tentative ruling is to continue the Final Report Hearing to October 12, 2026 at 1:30 p.m. to confirm that the settlement distributions in accordance with the court's final approval order have been performed, that the amount of the uncashed checks after the check-cashing deadline has been delivered to the cy pres recipient, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. The court notes that because a portion of the Judgment is being paid to a nonparty, Free to Thrive, plaintiff must submit an Amended Judgment that complies with CCP §§384(b) and 384.5, and Gov. Code §68520. Specifically, the Amended Judgment must state how much money is being paid to the nonparty, including any interest that accrued on the funds, and, if known, the purpose of the distribution to the nonparty and how it plans to expend the funds. The court also issues an Order to Show Cause why the court should not impose monetary sanctions against plaintiff's counsel for failing to comply with the court's order of October 15, 2025 to file all supporting papers for the Final Report Hearing at least 16 days before the Final Report Hearing date. The hearing is set for October 12, 2026 at 1:30 p.m. Any

		response to the OSC must be filed at least a week before the hearing. Plaintiff is ordered to give notice of this ruling to Defendant.
4	30-2022-01243365 Herrera vs. Behavioral Systems Southwest, Inc.	Plaintiffs Araceli Herrera, Brittany Towns, and Loretta Urbina's (collectively, "Plaintiffs") Motion for Final Approval of Class Action and PAGA Settlement is GRANTED IN PART. An enhancement award of \$5,000 for each named plaintiff is sufficient and proper for a class and settlement of this size, and based on each plaintiff's contribution to the case. The court also finds that an attorneys' fee award totaling \$321,750.00 or 33% of the Gross Settlement Amount is fair, adequate and reasonable for the class and settlement of this size. The court has increased the percentage from its standard award of 30% in light of the size of the recovery for class members and the extra work required to litigate the motion to compel arbitration through appeal. The court concludes that the \$975,000.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$321,750.00 (40% or \$128,700 to Otkupman Law Firm, ALC and 60% or \$193,050 to Lawyers for Justice, PC) to plaintiff's counsel for plaintiff's attorneys' fees, reduced from the \$341,250.00 requested; • \$20,000.00 (\$12,086.83 for Lawyers for Justice, PC and \$7,913.17 for Otkupman Law Firm, ALC) to plaintiff's counsel for plaintiff's litigation costs, as requested; • \$15,000.00 to Plaintiffs as enhancement awards (\$5,000.00 to Araceli Herrera, \$5,000.00 to Brittany Towns, and \$5,000.00 to Loretta Urbina), reduced from the \$37,500.00 requested; • \$7,950.00 to ILYM Group, Inc., the settlement administrator, as requested; and • \$75,000.00 to the LWDA for its share of PAGA penalties, as requested. The Final Accounting hearing is set for February 8, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar

		days before the hearing, Class Counsel and the Settlement Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues. Within five (5) days of this ruling, Plaintiffs must provide the court with a revised Proposed Final Order and Judgment reflecting this ruling. Plaintiffs are ordered to give notice of the ruling to the LWDA and Defendant.
5	30-2025-01483935 Segura vs. Airtech International, Inc., a California corporation;	The tentative ruling is to continue Plaintiff Mark Segura's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to October 26, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice or Plaintiff shall provide documentation and support for any request higher than this percentage at the final approval stage. There is no information as to how many of the class members or aggrieved employees speak and/or read English, which might require that the class notice also be in another language.

	This PAGA Released Claims include a release of claims for violations of Labor Code § 223, but that statute was not identified in plaintiff’s letter to the LWDA. Since plaintiff did not give the LWDA notice and an opportunity to investigate or pursue litigation itself for violations of this statute, it may not be the subject of the release in this case. (See <i>LaCour vs. Marshalls of California, LLC</i> (2023) 94 Cal. App. 5th 1172, 1192-96.) References to Labor Code § 223 should be removed from the PAGA Released Claims. The tax allocation for the settlement payment is 20% wages, 80% interest and penalties in the settlement agreement (Settlement § (C)(2)(e)), but the class notice states that the allocation is 25% wages and 75% interest and penalties (Section III(4) of the Class Notice). The documents must be consistent. The settlement agreement and class notice are inconsistent as to who will resolve workweek disputes. The class notice states that the Administrator will resolve any workweek disputes. The documents should reflect instead that, while the Administrator and the parties will attempt to resolve any such dispute, the court ultimately will decide any unresolved dispute. Section IV(3)(a) of the class notice must be amended to state that the court will ultimately decide any unresolved dispute. Class members/aggrieved employees may object to the amount of the settlement allocated to PAGA penalties. Thus, column 1, row 3 of the table on Page 2 of the class notice must be amended to state: “Participating Class Members Can Object to the Class Portion of the Settlement,” with the phrase “but not the PAGA Portion of the Settlement” removed. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff’s attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff’s declaration to support the enhancement request must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements.
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		Plaintiff shall provide notice of this ruling to the LWDA and Defendant.
6	30-2019-01070595 Farias vs. Sentinel Restaurant and Hospitality Group, LLC	Plaintiff Jose Farias's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") is GRANTED IN PART. The court concludes that the \$256,220.00 PAGA settlement (which includes an individual settlement of \$10,000.00 to Plaintiff Jose Farias) is fair, adequate and reasonable, and approves the following specific awards: • \$76,866.00 (7.3% or \$5,611.22 to Long & Delis, and 92.7% or \$71,254.78 to Law Offices of Abraham Tang) to plaintiff's counsel for plaintiff's attorneys' fees; • \$14,481.29 (\$1,632.50 to Long & Delis and \$12,848.79 to Law Offices of Abraham Tang) to plaintiff's counsel for plaintiff's litigation costs, as requested; • \$5,000.00 to Plaintiff Jose Farias as enhancement award, as requested; • \$6,500.00 to Phoenix Group, the settlement administrator, as requested; • \$107,529.53 to the LWDA for its share of PAGA penalties; and • \$35,843.18 to the aggrieved employees for their share of PAGA penalties. The court sets a Final Report Hearing for March 15, 2027 at 1:30 p.m. to confirm that distribution efforts are fully completed, including the distribution of uncashed aggrieved employee checks after 180 days, that the Administrator's work is complete, and that the court's file thus may be closed. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.

7	30-2025-01495141 Doan vs. Secure Guard Security Services, Inc.	The hearing on plaintiff's motion to approve a \$27,500 PAGA settlement is continued to October 12, 2026 at 1:30 p.m. in Department CX103. Plaintiff is ordered to file responsive papers no later than 16 days prior to the hearing. Plaintiff has moved the court to approve a \$27,500 PAGA settlement. On February 9, 2026, the court continued the hearing for several reasons, including plaintiff's failure to provide the settlement agreement and the LWDA notice letter. ROA 68. The court also ordered that, even assuming plaintiff had alleged a PAGA claim solely in his individual capacity, which contradicts the allegations in the complaint, plaintiff must provide authority that a representative PAGA action can be maintained solely in an individual capacity. <i>Id.</i> Plaintiff has failed to file any responsive papers. Accordingly, the court also sets an OSC re: monetary sanctions against plaintiff's counsel for the same date and time due to the failure to file a response as ordered. Any response to the OSC must be filed no later than 16 days prior to the hearing. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
8	30-2018-01015248 Springs vs. SBM Site Services, LLC	Defendant SBM Site Services, LLC's ("Defendant") Motion for the Court to Reinstate Its Order Compelling Arbitration is DENIED. The order compelling arbitration remains vacated under CCP § 1281.98 and the matter will proceed in Superior Court. The court GRANTS Defendant's requests for judicial notice of the court's January 31, 2024 Order Granting Plaintiff's Motion to Vacate Order Compelling Arbitration, and the October 23, 2025 Opinion of the Fourth Appellate District, Third Division, in the Court of Appeal, Fourth Appellate District, Case No. G063924. (Cal. Evid. Code § 452(d).) On January 27, 2023, Judge Sherman granted Defendant's Motion to Compel arbitration as to Plaintiff Brian Springs' ("Plaintiff") individual PAGA claims, but denied as to Plaintiff's representative PAGA claims. (ROA 206.) On January 26, 2024, after Defendant failed to timely pay an arbitration fee to JAMS, Judge Sherman granted Plaintiff's motion to vacate the order compelling arbitration, as the law at

		the time required strict compliance with CCP § 1281.98. (ROA 253.) “In an employment or consumer arbitration that requires, either expressly or through application of state or federal law or the rules of the arbitration provider, that the drafting party pay certain fees and costs during the pendency of an arbitration proceeding, if the fees or costs required to continue the arbitration proceeding are not paid within 30 days after the due date, the drafting party is in material breach of the arbitration agreement, is in default of the arbitration, and waives its right to compel the employee or consumer to proceed with that arbitration as a result of the material breach.” (CCP § 1281.98(a)(1).) In its opposition, Defendant’s counsel admitted to receiving the invoice from JAMS and the follow-up reminder e-mails from JAMS, and conceded that Defendant failed to timely pay the invoice, but argued that the JAMS invoice should have been sent to Defendant directly to trigger the 30-day deadline. Judge Sherman rejected this argument. On March 15, 2024, Defendant filed a notice of appeal of the January 26, 2024 order. (ROA 259.) The appellate court agreed with Judge Sherman’s finding that JAMS’s provision of the deposit request to Defendant’s counsel for payment of due and owing fees triggered the 30-day period provided in section 1281.98, subdivision (a). (ROA 320 at p. 14.) However, the appellate court believed Judge Sherman’s ruling had to be reversed and remanded due to a change in the law regarding CCP § 1281.98 based on a recent California Supreme Court decision in <i>Hohenshelt v. Superior Ct.</i> The appellate court instructed: “We remand to the trial court to determine in the first instance whether SBM’s failure to timely pay arbitration fees should be excused pursuant to the holding and reasoning of <i>Hohenshelt</i>.” (ROA 320 at p. 16.) In <i>Hohenshelt</i>, the California Supreme Court held that the penalties for failure to make timely payments of arbitration fees under Section 1281.98 could be subject to relief under certain circumstances of good faith conduct and excusable neglect. The California Supreme Court maintained that Section 1281.98 was enforceable and not preempted by the FAA, noting that “[w]ithout a rule requiring timely payment of arbitration fees and imposing meaningful consequences for willful nonpayment, companies could continue to stymie dispute resolution ‘by refusing to participate in the arbitration proceedings’ initiated by their consumers or employees.” (<i>Hohenshelt v. Superior Ct.</i> (2025) 18 Cal. 5th 310, 348.) However, the court explained: “[T]he Legislature sought to
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		deter companies and employers from engaging in <i>strategic</i> nonpayment of arbitration fees; we find no indication that it intended to strip companies and employers of their contractual right to arbitration where nonpayment of fees results from a good faith mistake, inadvertence, or other excusable neglect.” (<i>Id.</i> at 323.) Accordingly, the court held that “[s]ection 1281.98 does not displace background statutes permitting relief to a breaching party in certain circumstances[.]” (<i>Id.</i> at 349.) “[U]nder general contract law principles as under section 1281.98, a drafting party cannot avoid discharging the other party's contractual duty to proceed in arbitration if it willfully withholds fees necessary to move arbitration forward.” (<i>Hohenshelt</i>, 18 Cal. 5th at 344.) “Conversely, if the drafting party acted in good faith, it may seek relief under the above statutes, and its claim should be evaluated under the usual principles in law and equity governing relief from forfeiture or default, including whether the other party has been prejudiced.” (<i>Id.</i>) Thus, as it currently stands, a party that fails to make a required contractual payment and seeks to excuse that failure bears the burden of demonstrating that its nonpayment was the result of a good faith mistake, inadvertence, or other excusable neglect. <i>MacFadden v. Walker</i> (1971) 5 Cal. 3d 809, 813; <i>CQL Original Prods., Inc. v. Nat'l Hockey League Players' Assn.</i>, 39 Cal. App. 4th 1347, 1357, fn. 6 (1995); <i>Estrada v. KAG W., LLC</i>, No. 1:24-CV-00257-KES-CDB, 2025 WL 2829425, at *6 (E.D. Cal. Oct. 6, 2025) (employer has the burden to show delay was excusable under “[California Code of Civil Procedure] section 473, Civil Code section 3275, or Civil Code section 1511”), citing <i>Hohenshelt</i>, 18 Cal.5th at 323. Here, the defendant fails to carry this burden. The defendant primarily relies on inadvertence, asserting that defendant’s counsel “inadvertently” failed to include a date certain when counsel forwarded the arbitrator’s invoice to her client. This assertion may have been successful if the arbitrator had sent counsel only one reminder of the obligation to pay. Counsel forwarded this invoice to the client and, for all counsel knew, the invoice was paid. In this circumstance, counsel could have logically claimed that it was unaware of the non-payment until the motion to return the case to court was filed.
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	But this scenario is not the circumstance before the court. Here, the arbitrator sent a <u>second notice</u> to defense counsel, pointing out that payment had not been received. (See Amaral Declaration, Exhibit E). In her declaration, counsel concedes she received this notice (Amaral declaration, paragraph 16). Thus, counsel was aware (or, at the very least, should have been aware) the no payment was made. In this circumstance, counsel cannot claim inadvertence as counsel knew of the non-payment and did nothing to rectify it (except to, again, futilely forward the invoice to the client without the date certain for payment). Defendant also argues that its failure to timely pay the arbitrator's invoice was the result of excusable neglect. This argument is, however, unavailing as the defendant did not pay the arbitration fee until plaintiff filed its motion to return the matter to Superior Court (12 days after the statutory deadline). On this point, the declaration of defense counsel is critical. In paragraph 17 of counsel's declaration, counsel states that counsel understands payment was made on October 25, 2024. In paragraphs 18 of counsel's declaration, counsel states that, on this same date, she received word from plaintiff's counsel that plaintiff would be moving to have his case returned to Superior Court (which motion was also filed on October 25, 2024). What is missing from the declaration is any explanation of whether there is a connection between these two events; that is, whether the fee was paid <i>because</i> of plaintiff's motion. Given that plaintiff has the burden of proof and consciously omitted any explanation from counsel's declaration, the court cannot escape the conclusion that the fee was only paid when the motion was filed or threatened. This delay, though not provably for a strategic reason, is the exact sort of foot-dragging that the statute was meant to remedy. The defendant had 42 days to pay a fee that was due upon receipt of the invoice, but did not pay the fee until forced to do so by the opposing party. Under the circumstances, this court does not find defendant's neglect excusable. Because the court finds that general principles of equity do not provide defendant relief in this circumstance, the court does not reach plaintiff's other grounds for opposing this motion. Importantly, the court does not find defense counsel's conduct to be grossly negligent or below any standard of professional conduct as the court does not believe such findings are necessary for the court to exercise its discretion on this motion.
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		Defendant is ordered to give notice of this ruling.
9	30-2025-01495354 Briseno vs. SchoolsFirst Federal Credit Union, a California Corporation	Defendant SchoolsFirst Federal Credit Union’s unopposed motion to compel arbitration and to strike and dismiss class action is GRANTED. The court finds that, due to SchoolsFirst’s affect on interstate commerce, the Federal Arbitration Act (“FAA”) applies to the arbitration agreement in this case. The Court’s role under the FAA is limited to determining: (1) whether there is a valid agreement to arbitrate between the parties; and, if so, (2) whether the agreement covers the dispute. <i>Brennan v. Opus Bank</i>, 796 F.3d 1125, 1130 (9th Cir. 2015). 1 The court has reviewed the motion and finds that the binding arbitration agreement entered into between SchoolsFirst and Briseno is valid, governs her claims, and includes an enforceable class action waiver. Accordingly, the court grants the motion. The matter is compelled to arbitration and the class claims are stricken and dismissed without prejudice. The moving party is ordered to give notice of this ruling.
11	30-2024-01393974 Huaji vs. Jinggang	Plaintiff Liang Huaji’s (“Plaintiff”) Application of Jacob Chen (“Applicant”) to Appear as Counsel Pro Hac Vice is GRANTED. On or before the anniversary of the date of this order, if Applicant remains counsel for Plaintiff, Plaintiff must pay a renewal fee of five hundred dollars (\$500). (Gov. Code § 70617(e)(2).) Plaintiff is ordered to give notice of this ruling.

12	30-2024-01414940 Zhuhai Yangliushu Industrial Development Co., Ltd. vs. Jinggang	Plaintiff Zhuhai Yangliushu Industrial Development Co., Ltd.'s ("Plaintiff") Application of Jacob Chen ("Applicant") to Appear as Counsel Pro Hac Vice is GRANTED. On or before the anniversary of the date of this order, if Applicant remains counsel for Plaintiff, Plaintiff must pay a renewal fee of five hundred dollars (\$500). (Gov. Code § 70617(e)(2).) Plaintiff is ordered to give notice of this ruling.
13	30-2020-01174005 Utzman vs. County of Orange	Continued to June 27, 2026
14	JCCP 5426 Briseno vs. SchoolsFirst Federal Credit Union, a California Corporation	No tentative ruling. The parties should come prepared to discuss a stay pending arbitration in this case.